

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name and Address): LAW OFFICES OF HARRY A. SHERR/ 2950 Thirty-First Street Suite 240, Santa Monica, CA 90405		CBN 121997 TELEPHONE NO.: (310)450-3214	CASE NUMBER: EC 009721
ATTORNEY FOR (Name): MOHAMAD ABDALLAH		DEPOSITION SUBPENA For Production of Business Records	
NAME OF COURT: LOS ANGELES SUPERIOR COURT			
POST OFFICE and 300 East Olive Street STREET ADDRESS: Burbank, CA 91502			
PLAINTIFF/PETITIONER: MOHAMAD ABDALLAH			
DEFENDANT/RESPONDENT: NAGEHAM HANNA, et al			

THE PEOPLE OF THE STATE OF CALIFORNIA, TO (name): **PHILLIP MORRIS** by its agent for service of Process, CT Corporation

1. YOU ARE ORDERED TO PRODUCE THE BUSINESS RECORDS described in item 3 as follows:

Deposition Officer (name): **HARRY A. SHERR**
 Date: **March 31, 1994** Time: **12 Noon**
 Address: **2950 Thirty-First Street, Suite 240, Santa Monica, CA 90405**

- ☒ by delivering a true, legible, and durable copy of the business records described in item 3, enclosed in a sealed inner wrapper with the title and number of the action, name of witness, and date of subpoena clearly written on it. The inner wrapper shall then be enclosed in an outer envelope or wrapper, sealed, and mailed to the deposition officer at the address in item 1.
 - ☐ by delivering a true, legible, and durable copy of the business records described in item 3 to the deposition officer at the witness's address, on receipt of payment in cash or by check of the reasonable costs of preparing the copy, as determined under Evidence Code section 1563(b).
 - ☐ by making the original business records described in item 3 available for inspection at your business address by the attorney's representative and permitting copying at your business address under reasonable conditions during normal business hours.
2. The records are to be produced by the date and time shown in item 1 but not sooner than 20 days after the issuance of the deposition subpoena, or 15 days after service, whichever date is later. Reasonable costs of locating records, making them available or copying them, and postage, if any, are recoverable as set forth in Evidence Code section 1563(b). The records shall be accompanied by an affidavit of the custodian or other qualified witness pursuant to Evidence Code section 1561.
3. The records to be produced are described as follows:

Please see attached Exhibit "A."

☐ Continued on attachment 3.

DISOBEDIENCE OF THIS SUBPENA MAY BE PUNISHED AS CONTEMPT BY THIS COURT. YOU WILL ALSO BE LIABLE FOR THE SUM OF FIVE HUNDRED DOLLARS AND ALL DAMAGES RESULTING FROM YOUR FAILURE TO OBEY.

Date issued: **March 2, 1994**

... **HARRY A. SHERR**
 (TYPE OR PRINT NAME)

► 
 (SIGNATURE OF PERSON ISSUING SUBPENA)

Attorney at Law

(TITLE)

(See reverse for proof of service)

PLAINTIFF/PETITIONER:	CASE NUMBER:
DEFENDANT/RESPONDENT:	

PROOF OF SERVICE OF DEPOSITION SUBPENA—BUSINESS RECORDS

1. I served this Deposition Subpena—Business Records by personally delivering a copy to the person served as follows:

- a. Person served (*name*):
- b. Address where served:
- c. Date of delivery:
- d. Time of delivery:
- e. (1) ☐ Witness fees were paid.
Amount:\$ _____
- (2) ☐ Copying fees were paid
Amount:\$ _____
- f. Fee for service:\$ _____

2. I received this subpoena for service on (*date*):

3. Person serving:

- a. ☐ Not a registered California process server.
- b. ☐ California sheriff, marshal, or constable.
- c. ☐ Registered California process server.
- d. ☐ Employee or independent contractor of a registered California process server.
- e. ☐ Exempt from registration under Bus. & Prof. Code section 22350(b).
- f. ☐ Registered professional photocopier.
- g. ☐ Exempt from registration under Bus. & Prof. Code section 22451.
- h. Name, address, and telephone number and, if applicable, county of registration and number:

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date:



(SIGNATURE)

(For California sheriff, marshal, or constable use only)
I certify that the foregoing is true and correct.

Date:



(SIGNATURE)

2074196328

Exhibit A

1. Any coupon, certificate or other document evidencing a request for rebate payment made by J & K Wholesale, 405 San Fernando Road, Burbank, CA 91502 from November 1, 1991 to November 1, 1992.
2. Any checks, money orders or other documents evidencing actual payments made pursuant to a submission for a rebate request made by J & K Wholesale, 405 San Fernando Road, Burbank, CA 91502.
3. Any documents reflecting any communication, correspondence or other documents reflecting any interaction by Phillip Morris or any of its subsidiaries and J & K Wholesale, 405 San Fernando Road, Burbank, CA 91502.
4. Any coupon, certificate or other document evidencing a request for rebate payment made by Nageham Hanna, 238 East Santa Anita Street, #205, Burbank, CA 91502, from November 1, 1991 to November 1, 1992.
5. Any checks, money orders or other documents evidencing actual payments made pursuant to a submission for a rebate request made by Nageham Hanna, Nageham Hanna, 238 East Santa Anita Street, #205, Burbank, CA 91502,
6. Any documents reflecting any communication, correspondence or other documents reflecting any interaction by Phillip Morris or any of its subsidiaries and Nageham Hanna, Nageham Hanna, 238 East Santa Anita Street, #205, Burbank, CA 91502,
7. Any coupon, certificate or other document evidencing a request for rebate payment made Abdulahad Touma, 238 East Santa Anita Street, #205, Burbank, CA 91502, from November 1, 1991 to November 1, 1992.
8. Any checks, money orders or other documents evidencing actual payments made pursuant to a submission for a rebate request made by Abdulahad Touma Nageham Hanna, 238 East Santa Anita Street, #205, Burbank, CA 91502,
9. Any documents reflecting any interaction communication, correspondence or other documents reflecting any interaction by Phillip Morris or any of its subsidiaries and Abdulahad Touma, 238 East Santa Anita Street, #205, Burbank, CA 91502,

PROOF OF SERVICE

STATE OF CALIFORNIA, COUNTY OF LOS ANGELES

I am employed in the County of Los Angeles, State of California. I am over the age of 18 and not a party to the within action; my business address is 2950 Ocean Park Boulevard, Suite 240, Santa Monica, California 90405.

On March 3, 1994, I served the foregoing document described as DEPOSITION SUBPENA FOR PRODUCTION OF BUSINESS RECORDS directed to Phillip Morris by its agent for service of process, CT Corporation, on the interested parties in this action

(xx) By placing () the original (xx) a true copy thereof enclosed in a sealed envelope addressed as follows:

Mark I. Spiro, Esq.
Law Offices of Hagop N. Chopurian
300 South Glendale Avenue, Suite 410
Glendale, CA 91205

(xx) (BY MAIL)

(xx) As follows: I am "readily familiar with the firm's practice of collection and processing correspondence for mailing. Under that practice it would be deposited with U.S. postal service on that same day with postage thereon fully prepaid at Santa Monica, California in the ordinary course of business. I am aware that on motion of the party served, service is presumed invalid if postal cancellation date or postage meter date is more than one day after date of deposit for mailing in affidavit.

Executed on March 3, 1994, at Santa Monica, California.

(xx) State I declare under penalty of perjury under the laws of the State of California that the above is true and correct.

() Federal I declare that I am employed in the office of a member of the bar of this court at whose direction the service was made.


Harry A. Sherr